

## **Directive 2001/83/EC - Human Medicinal Products**

### **Article 1(29)**

**Title:** Traditional Herbal Medicinal Product

**Jurisdiction:** International

**Category:** International

**Source Citation:** Directive 2001/83/EC, Article 1(29), 2001, as amended/consolidated

#### **Plain English Summary:**

A traditional herbal medicinal product is a herbal medicinal product that meets the conditions specified in Article 16a(1). For an Ayurvedic product entering the EU market, this definition is important for determining whether it can potentially use the EU's traditional-use registration route.

#### **The Exact Legal Text:**

29. Traditional herbal medicinal product: A herbal medicinal product that fulfils the conditions laid down in Article 16a(1).

#### **Keywords/Triggers:**

traditional herbal medicine, Ayurvedic medicine EU, herbal medicinal product, traditional-use registration, Article 16a, EU herbal product, herbal medicine classification

### **Article 1(30)**

**Title:** Herbal Medicinal Product

**Jurisdiction:** International

**Category:** International

**Source Citation:** Directive 2001/83/EC, Article 1(30), 2001, as amended/consolidated

#### **Plain English Summary:**

A herbal medicinal product is a medicinal product whose active ingredients consist exclusively of specified herbal substances, herbal preparations, or a combination of the two. This definition can help your system determine whether an Ayurvedic product containing plant-based active ingredients falls within the EU herbal medicinal-product framework.

**The Exact Legal Text:**

30. Herbal medicinal product: Any medicinal product, exclusively containing as active ingredients one or more herbal substances or one or more herbal preparations, or one or more such herbal substances in combination with one or more such herbal preparations.

**Keywords/Triggers:**

herbal medicinal product, herbal active ingredient, Ayurvedic herbal medicine, plant-based medicine, herbal preparation, herbal substance, EU medicine classification

**Article 1(31)**

**Title:** Herbal Substances

**Jurisdiction:** International

**Category:** International

**Source Citation:** Directive 2001/83/EC, Article 1(31), 2001, as amended/consolidated

**Plain English Summary:**

Herbal substances are mainly whole, fragmented, or cut plants, plant parts, algae, fungi, or lichens that are generally unprocessed and usually dried. The definition also covers certain untreated exudates and requires the substance to be identified by the plant part used and its botanical name.

For an Ayurvedic product, this is useful when determining whether its raw botanical ingredients qualify as “**herbal substances**” under the EU framework.

**The Exact Legal Text:**

31. Herbal substances: All mainly whole, fragmented or cut plants, plant parts, algae, fungi, lichen in an unprocessed, usually dried, form, but sometimes fresh. Certain exudates that have not been subjected to a specific treatment are also considered to be herbal substances. Herbal substances are precisely defined by the plant part used and the botanical name according to the binomial system (genus, species, variety and author).

**Keywords/Triggers:**

herbal substance, Ayurvedic plant ingredient, raw botanical, dried plant material, botanical name, plant part, herbal raw material, EU herbal classification

**Article 1(32)**

**Title:** Herbal Preparations

**Jurisdiction:** International

**Category:** International

**Source Citation:** Directive 2001/83/EC, Article 1(32), 2001, as amended/consolidated

**Plain English Summary:**

Herbal preparations are products obtained by processing herbal substances through methods such as extraction, distillation, purification, concentration, or fermentation. The definition specifically includes powders, tinctures, extracts, essential oils, expressed juices, and processed exudates.

This is particularly useful for Ayurveda because many Ayurvedic products use processed plant materials, extracts, powders, oils, and similar preparations.

**The Exact Legal Text:**

32. Herbal preparations: Preparations obtained by subjecting herbal substances to treatments such as extraction, distillation, expression, fractionation, purification, concentration or fermentation. These include comminuted or powdered herbal substances, tinctures, extracts, essential oils, expressed juices and processed exudates.

**Keywords/Triggers:**

herbal preparation, Ayurvedic extract, herbal powder, tincture, essential oil, plant extract, herbal processing, EU herbal product

**ARTICLE 16a**

**Title:** Traditional-Use Registration — Eligibility Criteria

**Jurisdiction:** International

**Category:** International

**Source Citation:** Directive 2001/83/EC, Article 16a, 2001, as amended/consolidated

**Plain English Summary:**

Article 16a creates a simplified registration procedure for certain traditional herbal medicinal products. To qualify, the product must meet conditions relating to its traditional indications, dosage, route of administration, length of traditional use, safety, and plausible efficacy.

For an Ayurvedic product entering the EU market, this is one of the most important provisions for determining whether the product can potentially qualify as a traditional herbal medicinal product.

### **The Exact Legal Text:**

#### **Article 16a**

1. A simplified registration procedure (hereinafter 'traditional-use registration') is hereby established for herbal medicinal products which fulfil all of the following criteria:

(a) they have indications exclusively appropriate to traditional herbal medicinal products which, by virtue of their composition and purpose, are intended and designed for use without the supervision of a medical practitioner for diagnostic purposes or for prescription or monitoring of treatment;

(b) they are exclusively for administration in accordance with a specified strength and posology;

(c) they are an oral, external and/or inhalation preparation;

(d) the period of traditional use as laid down in Article 16c(1)(c) has elapsed;

(e) the data on the traditional use of the medicinal product are sufficient; in particular the product proves not to be harmful in the specified conditions of use and the pharmacological effects or efficacy of the medicinal product are plausible on the basis of long-standing use and experience.

2. Notwithstanding Article 1(30), the presence in the herbal medicinal product of vitamins or minerals for the safety of which there is well-documented evidence shall not prevent the product from being eligible for registration in accordance with paragraph 1, provided that the action of the vitamins or minerals is ancillary to that of the herbal active ingredients regarding the specified claimed indication(s).
3. However, in cases where the competent authorities judge that a traditional herbal medicinal product fulfils the criteria for authorisation in accordance with Article 6 or registration pursuant to Article 14, the provisions of this chapter shall not apply.

### **Keywords/Triggers:**

traditional-use registration, Ayurvedic medicine EU, herbal medicine eligibility, EU herbal

product, 30 years traditional use, herbal medicine dosage, traditional herbal medicinal product, EU market access

## **ARTICLE 16b**

**Title:** Applicant and Registration Holder Requirements

**Jurisdiction:** International

**Category:** International

**Source Citation:** Directive 2001/83/EC, Article 16b, 2001, as amended/consolidated

### **Plain English Summary:**

Article 16b specifies who can apply for traditional-use registration. The applicant and registration holder must be established in the EU, and the application must be submitted to the competent authority of the relevant Member State.

For an Ayurvedic company outside the EU, this means it needs an appropriate EU-established applicant or registration holder to use this particular registration route.

### **The Exact Legal Text:**

#### **Article 16b**

1. The applicant and registration holder shall be established in the Community.
2. In order to obtain traditional-use registration, the applicant shall submit an application to the competent authority of the Member State concerned.

### **Keywords/Triggers:**

EU registration applicant, herbal medicine registration, EU registration holder, Ayurvedic company EU, traditional-use application, competent authority, EU herbal registration

## **ARTICLE 16c**

**Title:** Application Requirements for Traditional-Use Registration

**Jurisdiction:** International

**Category:** International

**Source Citation:** Directive 2001/83/EC, Article 16c, 2001, as amended/consolidated

### **Plain English Summary:**

Article 16c sets out the information and evidence that must accompany an application for traditional-use registration. This includes product information, pharmaceutical testing, previous authorisations or refusals, evidence of at least 30 years of medicinal use including 15 years in the EU, and safety evidence.

This is particularly important for an Ayurvedic startup because it identifies the documentation and historical-use evidence needed to pursue this EU registration route.

### **The Exact Legal Text:**

#### **Article 16c**

1. The application shall be accompanied by:

(a) the particulars and documents:

(i) referred to in Article 8(3)(a) to (h), (j) and (k);

(ii) the results of the pharmaceutical tests referred to in the second indent of Article 8(3)(i);

(iii) the summary of product characteristics, without the data specified in Article 11(4);

(iv) in case of combinations, as referred to in Article 1(30) or Article 16a(2), the information referred to in Article 16a(1)(e) relating to the combination as such; if the individual active ingredients are not sufficiently known, the data shall also relate to the individual active ingredients;

(b) any authorisation or registration obtained by the applicant in another Member State, or in a third country, to place the medicinal product on the market, and details of any decision to refuse to grant an authorisation or registration, whether in the Community or a third country, and the reasons for any such decision;

(c) bibliographical or expert evidence to the effect that the medicinal product in question, or a corresponding product has been in medicinal use throughout a period of at least 30 years preceding the date of the application, including at least 15 years within the Community. At the request of the Member State where the application for traditional-use registration has been submitted, the Committee for Herbal Medicinal Products shall draw up an opinion on the adequacy of the evidence of the long-standing use of the product, or of the corresponding product. The Member State shall submit relevant documentation supporting the referral;

(d) a bibliographic review of safety data together with an expert report, and where required by the competent authority, upon additional request, data necessary for assessing the safety of the medicinal product.

Annex I shall apply by analogy to the particulars and documents specified in point (a).

2. A corresponding product, as referred to in paragraph 1(c), is characterised by having the same active ingredients, irrespective of the excipients used, the same or similar intended purpose, equivalent strength and posology and the same or similar route of administration as the medicinal product applied for.
3. The requirement to show medicinal use throughout the period of 30 years, referred to in paragraph 1(c), is satisfied even where the marketing of the product has not been based on a specific authorisation. It is likewise satisfied if the number or quantity of ingredients of the medicinal product has been reduced during that period.
4. Where the product has been used in the Community for less than 15 years, but is otherwise eligible for simplified registration, the Member State where the application for traditional-use registration has been submitted shall refer the product to the Committee for Herbal Medicinal Products. The Member State shall submit relevant documentation supporting the referral.

The Committee shall consider whether the other criteria for a simplified registration as referred to in Article 16a are fully complied with. If the Committee considers it possible, it shall establish a Community herbal monograph as referred to in Article 16h(3) which shall be taken into account by the Member State when taking its final decision.

**Keywords/Triggers:**

30 years medicinal use, 15 years EU use, traditional-use evidence, herbal registration documents, safety data, pharmaceutical tests, corresponding product, EU herbal application

**ARTICLE 16d**

**Title:** Evaluation and Registration Procedure

**Jurisdiction:** International

**Category:** International

**Source Citation:** Directive 2001/83/EC, Article 16d, 2001, as amended/consolidated

**Plain English Summary:**

Article 16d explains how traditional-use registrations are evaluated when a Community herbal monograph or the relevant herbal substance/preparation list applies. Member States must also take into account traditional-use registrations granted by another Member State when evaluating certain other herbal medicinal products.

For an Ayurvedic product, this affects how an application may be evaluated across EU Member States.

### **The Exact Legal Text:**

#### **Article 16d**

1. Without prejudice to Article 16h(1), Chapter 4 of Title III shall apply by analogy to registrations granted in accordance with Article 16a, provided that:
  - (a) a Community herbal monograph has been established in accordance with Article 16h(3), or
  - (b) the herbal medicinal product consists of herbal substances, preparations or combinations thereof contained in the list referred to in Article 16f.
2. For other herbal medicinal products as referred to in Article 16a, each Member State shall, when evaluating an application for traditional-use registration, take due account of registrations granted by another Member State in accordance with this chapter.

#### **Keywords/Triggers:**

EU herbal registration procedure, Member State registration, herbal monograph, Article 16f list, traditional-use evaluation, EU herbal application, cross-member-state registration

#### **ARTICLE 16e**

**Title:** Grounds for Refusal of Traditional-Use Registration

**Jurisdiction:** International

**Category:** International

**Source Citation:** Directive 2001/83/EC, Article 16e, 2001, as amended/consolidated

#### **Plain English Summary:**

Article 16e identifies situations in which an EU Member State must refuse traditional-use registration. These include incorrect composition, unsuitable indications, potential harm under normal use, insufficient evidence of traditional use, or inadequate demonstration of pharmaceutical quality.

For an Ayurvedic startup, these are important rejection triggers when assessing whether a product is likely to qualify for EU traditional-use registration.

## **The Exact Legal Text:**

### **Article 16e**

1. Traditional-use registration shall be refused if the application does not comply with Articles 16a, 16b or 16c or if at least one of the following conditions is fulfilled:
  - (a) the qualitative and/or quantitative composition is not as declared;
  - (b) the indications do not comply with the conditions laid down in Article 16a;
  - (c) the product could be harmful under normal conditions of use;
  - (d) the data on traditional use are insufficient, especially if pharmacological effects or efficacy are not plausible on the basis of long-standing use and experience;
  - (e) the pharmaceutical quality is not satisfactorily demonstrated.
2. The competent authorities of the Member States shall notify the applicant, the Commission and any competent authority that requests it, of any decision they take to refuse traditional-use registration and the reasons for the refusal.

### **Keywords/Triggers:**

EU herbal registration rejection, traditional-use refusal, herbal product safety, insufficient traditional-use evidence, pharmaceutical quality, incorrect composition, medicinal product rejection, Article 16e

## **ARTICLE 16f**

**Title:** EU List of Herbal Substances and Preparations

**Jurisdiction:** International

**Category:** International

**Source Citation:** Directive 2001/83/EC, Article 16f, 2001, as amended/consolidated

### **Plain English Summary:**

Article 16f provides for an EU list of herbal substances, preparations and combinations that may be used in traditional herbal medicinal products. The list includes information such as indications, strength, dosage and route of administration.

If an Ayurvedic product uses a substance or preparation appearing on this list, certain evidence normally required under Article 16c may not need to be submitted.

### **The Exact Legal Text:**

#### **Article 16f**

1. A list of herbal substances, preparations and combinations thereof for use in traditional herbal medicinal products shall be established in accordance with the procedure referred to in Article 121(2). The list shall contain, with regard to each herbal substance, the indication, the specified strength and the posology, the route of administration and any other information necessary for the safe use of the herbal substance as a traditional medicinal product.
2. If an application for traditional-use registration relates to a herbal substance, preparation or a combination thereof contained in the list referred to in paragraph 1, the data specified in Article 16c(1)(b)(c) and (d) do not need to be provided. Article 16e(1)(c) and (d) shall not apply.
3. If a herbal substance, preparation or a combination thereof ceases to be included in the list referred to in paragraph 1, registrations pursuant to paragraph 2 for herbal medicinal products containing this substance shall be revoked unless the particulars and documents referred to in Article 16c(1) are submitted within three months.

#### **Keywords/Triggers:**

EU herbal substances list, herbal preparations list, traditional herbal medicine list, Article 16f, EU approved herbal substances, herbal dosage, herbal indication, traditional-use registration

### **ARTICLE 16g**

**Title:** Labelling, Package Leaflets and Advertising Requirements

**Jurisdiction:** International

**Category:** International

**Source Citation:** Directive 2001/83/EC, Article 16g, 2001, as amended/consolidated

#### **Plain English Summary:**

Article 16g applies several general medicinal-product requirements to traditional-use registrations, including requirements concerning manufacturing, quality, safety, labeling and other regulatory matters. It also requires specific statements on the product's labeling and package leaflet and requires a specific statement in advertisements.

This is highly relevant for an Ayurvedic product because how the product is labeled and advertised in the EU is part of market-access compliance.

### **The Exact Legal Text:**

#### **Article 16g**

1. Article 3(1) and (2), Article 4(4), Article 6(1), Article 12, Article 17(1), Articles 19, 20, 23, 24, 25, 40 to 52, 70 to 85, 101 to 108b, Article 111(1) and (3), Articles 112, 116, 117, 118, 122, 123, 125, the second paragraph of Article 126, and Article 127 of this Directive as well as Commission Directive 2003/94/EC of 8 October 2003 laying down the principles and guidelines of good manufacturing practice in respect of medicinal products for human use and investigational medicinal products for human use shall apply, by analogy, to traditional-use registration granted under this Chapter.
2. In addition to the requirements of Articles 54 to 65, any labelling and user package leaflet shall contain a statement to the effect that:

(a) the product is a traditional herbal medicinal product for use in specified indication(s) exclusively based upon long-standing use; and

(b) the user should consult a doctor or a qualified health care practitioner if the symptoms persist during the use of the medicinal product or if adverse effects not mentioned in the package leaflet occur.

A Member State may require that the labelling and the user package leaflet shall also state the nature of the tradition in question.

3. In addition to the requirements of Articles 86 to 99, any advertisement for a medicinal product registered under this chapter shall contain the following statement: Traditional herbal medicinal product for use in specified indication(s) exclusively based upon long-standing use.

#### **Keywords/Triggers:**

EU herbal labeling, traditional herbal advertising, package leaflet, herbal product claims, EU medicinal advertising, herbal product label, long-standing use statement, EU market access

#### **ARTICLE 16h**

**Title:** Committee for Herbal Medicinal Products and Herbal Monographs

**Jurisdiction:** International

**Category:** International

**Source Citation:** Directive 2001/83/EC, Article 16h, 2001, as amended/consolidated

**Plain English Summary:**

Article 16h establishes the Committee for Herbal Medicinal Products and gives it responsibilities concerning traditional-use registrations, herbal substances, herbal preparations and Community herbal monographs. These monographs can be used by Member States when evaluating applications.

For an Ayurvedic product, this is relevant because EU herbal monographs can provide important regulatory information when assessing herbal medicinal products.

**The Exact Legal Text:**

**Article 16h**

1. A Committee for Herbal Medicinal Products is hereby established. That Committee shall be part of the Agency and shall have the following competence:

(a) as regards simplified registrations, to:

perform the tasks arising from Article 16c(1) and (4),

perform the tasks arising from Article 16d,

prepare a draft list of herbal substances, preparations and combinations thereof, as referred to in Article 16f(1), and

establish Community monographs for traditional herbal medicinal products, as referred to in paragraph 3 of this Article;

(b) as regards authorisations of herbal medicinal products, to establish Community herbal monographs for herbal medicinal products, as referred to in paragraph 3 of this Article;

(c) as regards referrals to the Agency under Chapter 4 of Title III, in relation to herbal medicinal products as referred to in Article 16a, to perform the tasks set out in Article 32;

(d) where other medicinal products containing herbal substances are referred to the Agency under Chapter 4 of Title III, to give an opinion on the herbal substance where appropriate.

Finally, the Committee for Herbal Medicinal Products shall perform any other task conferred upon it by Community law.

The appropriate coordination with the Committee for Human Medicinal Products shall be ensured by a procedure to be determined by the Executive Director of the Agency in accordance with Article 57(2) of Regulation (EEC) No 2309/93.

2. Each Member State shall appoint, for a three-year term which may be renewed, one member and one alternate to the Committee for Herbal Medicinal Products.

The alternates shall represent and vote for the members in their absence. Members and alternates shall be chosen for their role and experience in the evaluation of herbal medicinal products and shall represent the competent national authorities.

The said Committee may coopt a maximum of five additional members chosen on the basis of their specific scientific competence. These members shall be appointed for a term of three years, which may be renewed, and shall not have alternates.

With a view to the coopting of such members, the said Committee shall identify the specific complementary scientific competence of the additional member(s). Coopted members shall be chosen among experts nominated by Member States or the Agency.

The members of the said Committee may be accompanied by experts in specific scientific or technical fields.

3. The Committee for Herbal Medicinal Products shall establish Community herbal monographs for herbal medicinal products with regard to the application of Article 10(1)(a)(ii) as well as traditional herbal medicinal products. The said Committee shall fulfil further responsibilities conferred upon it by provisions of this chapter and other Community law.

When Community herbal monographs within the meaning of this paragraph have been established, they shall be taken into account by the Member States when examining an application. Where no such Community herbal monograph has yet been established, other appropriate monographs, publications or data may be referred to.

When new Community herbal monographs are established, the registration holder shall consider whether it is necessary to modify the registration dossier accordingly. The registration holder shall notify any such modification to the competent authority of the Member State concerned.

The herbal monographs shall be published.

4. The general provisions of Regulation (EEC) No 2309/93 relating to the Committee for Human Medicinal Products shall apply by analogy to the Committee for Herbal Medicinal Products.

**Keywords/Triggers:**

Herbal Medicinal Products Committee, EU herbal monograph, herbal monographs, traditional herbal medicine evaluation, EMA herbal medicine, herbal substance assessment, EU herbal regulation

**ARTICLE 16i**

**Title:** Commission Report on Traditional-Use Registration

**Jurisdiction:** International

**Category:** International

**Source Citation:** Directive 2001/83/EC, Article 16i, 2001, as amended/consolidated

**Plain English Summary:**

Article 16i required the European Commission to report to the European Parliament and Council on how the traditional-use registration provisions were being applied. The report was also required to assess whether the simplified registration system could potentially be extended to other categories of medicinal products.

For your RAG, this is mainly background/procedural information, rather than a rule that directly determines whether a current Ayurvedic product qualifies.

**The Exact Legal Text:****Article 16i**

Before 30 April 2007, the Commission shall submit a report to the European Parliament and to the Council concerning the application of the provisions of this chapter.

The report shall include an assessment on the possible extension of traditional-use registration to other categories of medicinal products.

**Keywords/Triggers:**

EU traditional-use report, herbal medicinal product report, Article 16i, traditional-use registration review, European Commission herbal medicine, EU herbal legislation review